

24STCV33430 24STCV33430

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-08-24

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Case Number: 24STCV33430 Hearing Date: August 24, 2026 Dept: 512

HEARING DATE: Mon., August 24, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Manson

v. FCA US LLC, et al. COMP.

FILED: 12-17-24

CASE NUMBER: 24STCV33430

NOTICE:

OK

PROCEEDINGS: MOTION TO BE RELIEVED AS COUNSEL

MOVING PARTY: Counsel

Strategic Legal Practices, APC

RESP. PARTY: None

MOTION TO BE RELIEVED AS COUNSEL

(CCP § 284, CRC, rule 3.162)

TENTATIVE RULING:

Counsel Strategic Legal

Practices, APC's Motion to be Relieved as Counsel for Plaintiff Claire Manson

is GRANTED. However, a corrected

MC-053 form entitled "Order Granting Attorney's Motion to Be Relieved as

Counsel-Civil” must be resubmitted with the Court within the next 5 days.

The Court’s Ruling and Attorney’s

relief as Counsel of record for client is not effective until Proof of Service of the Order signed by the Court upon the client is served and filed in this action. Until then, counsel continues to be counsel of record. (Cal. Rules of Court 3.1362(e).)

Plaintiff’s Counsel is ordered to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct

Address (CCP §§ 1013, 1013a) OK

☒ 16/21 Court

Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None

filed as of August 18, 2026 ☐ Late ☒

None

REPLY: None

filed as of August 18, 2026 ☐

Late ☒ None

ANALYSIS:

I.

Background

On December 17, 2024,

Plaintiff Claire Manson (“Plaintiff”) filed a Complaint for Violation of Statutory Obligations against Defendants FCA US, LLC (“FCA US”) and Glendale Chrysler Jeep Dodge Ram (“Glendale Chrysler”) (“Defendants”) and Does 1-10.

On January 22, 2025,
Defendants filed Answers.

On July 29,
2026, Counsel Strategic
Legal Practices, APC ("Counsel") filed the instant Motion to be Relieved as
Counsel for Plaintiff (the "Motion").

No Opposition to
the Motion has been filed.

II.
Legal
Standard

Code
of Civil Procedure section 284 states that "the attorney in an action...may be
changed at any time before or after judgment or final determination, as
follows: (1) Upon the consent of both client and attorney...; (2) Upon the order
of the court, upon the application of either client or attorney, after notice
from one to the other." (Code Civ. Proc., § 284; Cal. Rules of Court, rule
3.1362.) "The determination whether to
grant or deny a motion to withdraw as counsel lies within the sound discretion
of the trial court." (Manfredi & Levine v. Superior Court (1998) 66
Cal.App.4th 1128, 1133); see Lempert v. Superior Court (2003) 112
Cal.App.4th 1161, 1173.)

An application
to be relieved as counsel must be made on Judicial Counsel Forms MC-051 (Notice
of Motion and Motion), MC-052 (Declaration), and MC-053 (Proposed Order). (Cal.
Rules of Court, rule 3.1362, subds. (a), (c), (e).)

In addition,
California Rules of Court, rule 3.1362 subsection (d) requires that the notice
of motion and motion, declaration, and proposed order be served on the client
and all other parties who have appeared in the case by personal service,
electronic service, or mail. If the notice is served by electronic service, it
must be accompanied by a declaration stating that the electronic service
address is the client's current electronic service address. (Cal. Rules of
Court, rule 3.1362, subd. (d)(2).) As used in this rule, "current" means:

“[T]he address
was confirmed within 30 days before the filing of the motion to be relieved.

Merely
demonstrating that the notice was sent to the client’s last known address and
was not returned or no electronic delivery failure message was received is not,
by itself, sufficient to demonstrate that the address is current.”

(Cal. Rules of
Court, rule 3.1362, subd. (d).)

III.
Discussion

On July 29,
2026, Counsel moved the Court to
be relieved as attorney of record for Plaintiff. (MC-051.) Counsel filed
MC-051, MC-052, and MC-053 Forms. (Cal. Rules of Court, rule 3.1362,
subds. (a), (c), (e).)

Counsel seeks to be relieved on the following
grounds:

[Counsel] seeks to be relieved as
counsel of record for Plaintiff Claire Manson because of a complete breakdown
of the attorney-client relationship between [Counsel] and Mr. Manson[.] Since
07/15/26, [Counsel] has made numerous attempts to communicate with Mr. Manson
by telephone calls and emails about key updates regarding his case, but without
any success. Thereafter, without disclosing its actual content and/or waiving
the attorney-client privilege, [Counsel] sent a comprehensive letter to Mr.
Manson on 07/21/26, and demanded an immediate response. No response has been
provided by Mr. Manson to [Counsel's] letter. Thus, a complete breakdown of the
attorney-client relationship has occurred because Mr. Manson has failed to
communicate with [Counsel]. If the Court wants additional explanation,
[Counsel] requests an in-camera session with the Court.

(MC-052, ¶ 2.)

The Court is satisfied with Counsel’s

reasons for seeking to be relieved. (Cal. Rules of Professional Conduct, rule 1.16.) The Court also finds the Motion satisfactorily complies with California Rules of Court, rule 3.1362.

However, the MC-053 Form needs to be resubmitted with accurate dates.

Accordingly, Counsel's Motion is GRANTED. However, the corrected MC-053 form entitled "Order Granting Attorney's Motion to Be Relieved as Counsel-Civil" must be resubmitted with the Court within the next 5 days of this ruling providing all the accurate dates and future dates.

The Court's Ruling and Attorney's relief as Counsel of record for client is not effective until Proof of Service of the Order signed by the Court upon the client is served and filed in this action. Until then, counsel continues to be counsel of record. (Cal. Rules of Court 3.1362(e).)

IV.

Conclusion & Order

Accordingly, Counsel Strategic Legal Practices, APC's Motion to be Relieved as Counsel for Plaintiff Claire Manson is GRANTED. However, a corrected MC-053 form entitled "Order Granting Attorney's Motion to Be Relieved as Counsel-Civil" must be resubmitted with the Court within the next 5 days.

The Court's Ruling and Attorney's relief as Counsel of record for client is not effective until Proof of Service of the Order signed by the Court upon the client is served and filed in this action. Until then, counsel continues to be counsel of record. (Cal. Rules of Court 3.1362(e).)

Plaintiff's Counsel is ordered to give notice.